

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

JAIL PETITION NO.616 OF 2025

(Against the judgment dated 25.06.2025, passed by the High Court of Sindh, Bench at Sukkur, in Criminal Appeal No.D.44 of 2021 and Confirmation Case No.D-7 of 2021)

Sultan alias Babo Jatoi

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Mr. Anis Yaqoob, ASC

For the State: Mr. Ali Haider Saleem, Addl. PG, Sindh

Date of hearing: 23.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- On 30.08.2019, Abdul Qudoos (PW-2), along with his cousin Mumtaz Ali (PW-3), allegedly visited the house of his sister Mst. Sumaya (PW-6), wife of the petitioner Sultan alias Babo and were sitting on a cot and engaged in conversation with Mst. Summiya, while the petitioner was present on another cot with his minor son, Mudasir alias Mitho, aged about four years. At about 10:30 a.m., the petitioner allegedly went inside a room, brought a glass containing some substance, administered it to the minor, and thereafter left the house. It is alleged that after about ten minutes the child started vomiting and became unconscious. He was first taken to Taluka Hospital, Pano Aqil, then referred to Civil Hospital, Sukkur, where he expired. His dead body was brought back to Taluka Hospital, Pano Aqil, for postmortem examination. Upon receipt of information about the incident, Manzoor Ahmed, ASI

(PW-1), reached the hospital and initiated proceedings. On same day at night time (2325 hours), Abdul Qudoos (PW-2) reported about the occurrence in Police Station upon which FIR No.70/2019 dated 30.08.2019 under sections 302 and 337-J PPC was registered against the petitioner at Police Station Sangi.

2. Dr. Tanveer Hussain (PW-5), who conducted the postmortem examination of the deceased, during the autopsy removed the heart of the minor deceased in toto and obtained pieces from his left and right lungs for histopathological examination, which were forwarded to the Histopathological Department, Gambat. He further preserved the stomach and its contents, portions of the small and large intestines, liver, and the left kidney, which were sealed and dispatched to the Chemical Examiner at Rohri for analysis. He received the report of the Chemical Examiner on 21.09.2019 and the report of the Histopathological Department on 01.10.2019 (Exh.P/E and Exh.P/F), respectively. After perusing both reports, he opined that the cause of death of the minor deceased was poisoning by an insecticide group substance.

3. The petitioner was arrested on the same day. Upon conclusion of trial, the learned Additional Sessions Judge-III, Sukkur, convicted him under section 302(b) PPC and sentenced him to death as *Ta'zir* with compensation under section 544-A, Cr.P.C. The High Court of Sindh, Bench at Sukkur, maintained the conviction and sentence of the petitioner and answered the murder reference in the affirmative.

4. We have heard learned counsel for the parties and have independently reappraised the entire evidence on record.

5. Informant Abdul Qudoos (PW-2), Mumtaz Ali (PW-3), and Mst. Sumaya (PW-6) claimed to be the eyewitnesses of the occurrence. PW Abdul Qudoos was engaged in cattle business and PW Mumtaz Ali was cultivator by profession as is manifest from their statements. As per their deposition on the fateful day, they went to the house of Mst. Sumaya but failed to disclose any plausible reason for their visit, hence, both are chance witnesses. In criminal

jurisprudence, a “chance witness” is one who, in the ordinary course of events, would not be expected to be present at the place of occurrence. The testimony of such a witness requires cautious and deeper scrutiny. Such witness must satisfactorily explain his presence at the spot, and his testimony must receive confidence from strong independent circumstances. In the absence of any plausible and convincing explanation about his presence at the crime spot, the evidence of a chance witness is looked upon with suspicion. After going through the testimony of PWs Abdul Qudoos and Mumtaz Ali, particularly, their cross-examination we observed that they have offered inconsistent versions regarding the time and manner of their arrival at the house of Mst. Sumaya. PW Abdul Qudoos stated that they went to the house of his sister Mst. Sumaya on two motorcycles and reached there within 10 to 15 minutes, whereas Mumtaz Ali stated that they travelled on one motorcycle and reached her house within two minutes. Their statements are also contradictory regarding the time of departure from their respective houses and their meeting prior to visiting the house of Mst. Sumaya. Both the said witnesses candidly admitted that they did not enter the room from where the petitioner had allegedly brought the glass containing the substance administered to the child. This omission appears to be wholly inconsistent with natural human conduct. Ordinarily, when a minor child consumes something and shortly thereafter starts vomiting and becomes unconscious, the immediate and instinctive reaction of the persons present would be to examine the utensil or glass from which the substance was consumed and to verify what had been given. Likewise, if it was alleged that the substance had been fetched from inside a room, a natural and spontaneous response would be to rush to that room to ascertain whether any poisonous or suspicious material was lying there. The complete inaction on their part in this regard, and their failure to make even a cursory inquiry or inspection, renders their presence doubtful and their version contrary to the dictates of normal human behaviour. They contradicted each other regarding the type of cot and other material particulars. It is also noteworthy that both PWs Abdul Qudoos and

Mumtaz Ali stated that at the time of shifting to the hospital, the minor deceased was wearing a grey-coloured suit; however, Dr. Tanveer Hussain (PW-5), who conducted the postmortem examination, categorically recorded that the deceased was clad in a light blue shalwar kameez. According to Manzoor Ahmed, ASI (PW-1), he reached the hospital at about 1450 hours upon receiving information regarding the death of the child. If, as alleged, PWs Abdul Qudoos and Mumtaz Ali were present at the hospital at that time, the normal and expected course of conduct would have been to immediately reported the occurrence without loss of time. Instead, the FIR was lodged at 2335 hours at the police station, after considerable delay, with no convincing explanation for such procrastination. Furthermore, both these witnesses, in an apparent attempt to bring their testimony in conformity with the subsequent recovery of a steel glass allegedly at the instance of the petitioner, made a material improvement before the Court by asserting that the poison had been administered through a steel glass to the minor deceased by the petitioner. Confrontation with their earlier statements revealed that no such detail had been mentioned therein. The cumulative effect of these inconsistencies, unnatural conduct, unexplained delay, and dishonest improvements creates serious doubt about the very presence of PWs Abdul Qudoos and Mumtaz Ali at the place of occurrence at the relevant time, rendering their testimony unworthy of implicit reliance.

6. As regards Mst. Sumaya (PW-6), she being mother of the minor deceased her presence in the house at the relevant time cannot be doubted. However, in her cross-examination she made certain admissions which materially affect the prosecution case. She stated that, besides herself and the petitioner, the petitioner's mother and his four brothers were also present in the house at the time of occurrence. Significantly, this important fact finds no mention in the statements of PWs Abdul Qudoos and Mumtaz Ali, who portrayed the incident as if it had occurred in their exclusive presence. She also admitted that her family was engaged in agricultural activities and that pesticide poison was ordinarily kept

in the house for spraying cotton crops, the month of August being the relevant season. This admission, when examined in juxtaposition with the medical evidence, assumes considerable significance. Dr. Tanveer Hussain (PW-5), in clear terms, conceded during cross-examination that it was possible for a child of four years to consume poison on his own, mistaking it for a drink, and that a child of such tender age lacks the capacity to differentiate between a harmful substance and potable liquid. This medical opinion provides a plausible and reasonable hypothesis consistent with innocence, particularly in a household where insecticide was admittedly available. In such circumstances, the possibility of accidental ingestion cannot be excluded. It is an admitted position that the petitioner was the biological father of the minor deceased and had been living with him since birth. In our societal and moral framework, a father is regarded as the natural protector, guardian, and well-wisher of his children. The bond between a parent and child is founded upon affection, protection, and sacrifice. In the absence of compelling evidence of strained relations, denial of paternity, or some other grave motive, it is wholly unnatural to presume that a father would administer poison to his own minor son, particularly in the presence of relatives. The prosecution has brought no material on record suggesting any enmity between the spouses, any suspicion regarding the child's paternity, or any other circumstance which could provide a motive for such an extreme act. The story that the petitioner, while in the presence of alleged eyewitnesses, deliberately administered poison to his own son appears inherently improbable and against human conduct.

7. Upon independent appraisal, we find that the prosecution evidence is fraught with material contradictions, improvements, unexplained delay in lodging the FIR, absence of motive, and a medical opinion consistent with accidental ingestion. These circumstances cumulatively create reasonable doubt in the prosecution case. It is a cardinal principle of criminal law that if a single circumstance creates reasonable doubt in the mind of a

prudent person regarding the guilt of the accused, he is entitled to its benefit, not as a matter of grace or concession but as a matter of right. The learned Courts below appear to have overlooked these material infirmities and did not appreciate the evidence in its true perspective.

8. Accordingly, this petition is converted into an appeal and is allowed. The conviction and sentence awarded to the appellant are set aside, and he is acquitted of the charge. He shall be released forthwith, if not required to be detained in any other case.

Judge

Judge

Judge

Islamabad the
23rd February, 2026
Approved for Reporting
M.Siraj Afridi PS